

**BEFORE THE  
OFFICE OF ADMINISTRATIVE HEARINGS  
STATE OF CALIFORNIA**

**In the Matter of the Motion for Immediate Reversal of  
Suspension of:**

**DAVID MOELLENKAMP,**

**A Permanent Certificated Employee,**

**Moving Party,**

**and**

**LOS ALAMITOS UNIFIED SCHOOL DISTRICT,**

**Responding Party.**

**OAH No. 2025080890**

**ORDER DENYING MOTION FOR IMMEDIATE REVERSAL OF  
SUSPENSION**

On September 12, 2025, a telephonic hearing on the motion filed by David Moellenkamp for immediate reversal of suspension (Motion) was held before Erlinda Shrenger, Administrative Law Judge (ALJ), Office of Administrative Hearings, State of California.

Ilissa B. Gold, of the law firm Reich, Adell & Cvitan, represented moving party David Moellenkamp (Respondent).

Allison R. De La Riva, of the law firm Atkinson, Andelson, Loya, Ruud & Romo, represented responding party Los Alamitos Unified School District (District).

The District has suspended Respondent without pay pending the outcome of its action to dismiss Respondent. The sole basis for the suspension under Education Code section 44939 is immoral conduct. In the Motion, Respondent seeks an order for the immediate reversal of his suspension. The District filed a written opposition to the Motion.

Having considered the parties' written submissions and oral arguments, the ALJ hereby finds and orders as follows.

### **Motion for Immediate Suspension**

Education Code section 44939 authorizes the governing board of a school district, if it deems the action necessary, to immediately suspend a permanent employee from their duties, upon the filing of written charges with the governing board charging the employee with immoral conduct, conviction of a felony or any crime involving moral turpitude, incompetency due to mental disability, willful refusal to perform regular assignments without reasonable cause, or violation of section 51530 (teaching communism).

An employee who is suspended pursuant to Education Code section 44939 may serve and file with the Office of Administrative Hearings a motion for immediate reversal of suspension. The motion shall include "a memorandum of points and authorities setting forth law and argument supporting the employee's contention that

the statement of charges does not set forth a sufficient basis for immediate suspension." (Ed. Code, § 44939, subd. (c)(1).) Review of the motion "shall be limited to a determination as to whether the facts as alleged in the statement of charges, if true, are sufficient to constitute a basis for immediate suspension under this section." (*Id.*)

The review of a motion made pursuant to Education Code section 44939 is analogous to a demurrer, which tests the sufficiency of the allegations in a complaint. (*Pacifica Homeowners' Ass'n v. Wesley Palms Retirement. Community* (1986) 178 Cal.App.3d 1147, 1151.) Facts properly pleaded are accepted as true, but contentions, deductions, or conclusions of fact or law should be disregarded. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Conclusory characterizations of conduct as intentional, willful, or fraudulent are "patently insufficient." (*Brousseau v. Jarrett* (1997) 73 Cal.App.3d 864, 872.)

## **Statement of Charges**

Respondent currently serves as the Vocal Musical Teacher and Vocal Musical Director at Los Alamitos High School. The Statement of Charges, at paragraph 24, alleges Respondent engaged in immoral conduct during a student choir trip to Nashville, Tennessee in March 2025. Respondent was described as being erratic, having abrupt mood changes, and making inappropriate comments toward students. His colleagues described him as "speaking in circles" and "steamrolling" other staff during rehearsals and with students. Students and chaperones reported being uncomfortable in Respondent's presence to such an extent that Principal Christiana Kraus was required to travel to Nashville to address their alleged concerns.

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The Statement of Charges alleges the following specific incidents of concern:

Upon arriving in Nashville from Los Alamitos, contrary to prior years, Respondent planned a rehearsal with students on the night of travel. At the rehearsal, Respondent made comments similar to, "I know you're really tired, you need to smile. Do you even care to win? Are you going to be the first group not to win?" (Statement of Charges (SOC), ¶ 24(a).)

At the first morning rehearsal, from 7:00 a.m. to 8:00 a.m., the plan had been to get the students awake and ready for a 10:30 a.m. performance. When a few students entered late (between 7:05 a.m. and 7:07 a.m.), Respondent "berated" the entire group of students. Respondent made comments similar to, "You can't show up on time?! Your chaperones can't even show up on time?!" The students left defeated and feeling that everything they did that morning was wrong. The students were late to the rehearsal because of a miscommunication between Respondent and the chaperones. (SOC, ¶ 24(c).)

During a later rehearsal, Respondent used "swings" as threats to other students, telling students, "We've got people to take your place." Then, when students were getting "tapped" out so that "swings" could step in and practice, Respondent yelled at the students for sitting out. Respondent's colleagues on the trip described Respondent as being "pissed" and appearing to "go after" students individually such that they had to intervene to secure student safety. Respondent was described as "yelling at" and "chasing" a specific female student. (SOC, ¶ 24(d).)

On Saturday, Respondent called the chaperones together for a meeting; however, during the time set aside for the meeting, Respondent met with four male students. The four students left their meeting with Respondent in tears. Respondent

then told the adults, "We have four boys that may need to be sent home if they can't follow the rules." Respondent allegedly made comments to these students, and others, including: (1) Telling students "the apple doesn't fall far from the tree" referencing the chaperones not following directions; (2) Berating students for being late and asking, "Who do you listen to, me or the chaperones. I'm in charge, it's me"; and (3) Telling students "they are not genetically as good as [another student] and [they] can blame [their] parents." (SOC, ¶ 24(e).)

On Saturday evening, while the students were at a dance chaperoned by the adults, Respondent met with Principal Kraus. After the meeting, Respondent allegedly reprimanded his colleagues attending the trip for not being present with him when he met with Principal Kraus. Respondent ridiculed his colleagues, telling them that no one on the team has the talent or creativity he has. (SOC, ¶ 24(f).)

Respondent made last-minute costume changes that caused stress among the parent volunteers and staff, and resulted in individuals staying up all night to meet respondent's demands. (SOC, ¶ 24(g).)

## **Analysis**

"Immoral conduct" has been defined to mean that which is hostile to the welfare of the general public and contrary to good morals. Immoral conduct includes conduct inconsistent with rectitude, or indicative of corruption, indecency, depravity, and dissoluteness. Immoral conduct includes conduct that is willful, flagrant, or shameless, conduct showing moral indifference to the opinions of respectable members of the community, and conduct evincing an inconsiderate attitude toward good order and the public welfare. (*Board of Education of the San Francisco Unified School Dist. v. Weiland* (1960) 179 Cal.App.2d 808, 811.)

The determination of whether Respondent's conduct on the March 2025 choir trip constitutes immoral conduct must be viewed in the context of a teacher's role in the public school system. "A teacher . . . in the public school system is regarded by the public and pupils in the light of an exemplar, whose words and actions are likely to be followed by the children coming under [their] care and protection." (*Board of Educ. of City of Los Angeles v. Swan* (1953) 41 Cal.2d 546, 552, citations omitted.) A teacher "is entrusted with the custody of children and their high preparation for useful life. His habits, his speech, his good name, his cleanliness, the wisdom and propriety of his unofficial utterances, his associations, all are involved. His ability to inspire children and to govern them, his power as a teacher, and the character for which he stands, are of major concern in a teacher's selection and retention. . . ." (*Goldsmith v. Board of Ed. of Sacramento High School Dist.* (1924) 66 Cal.App. 157, 168)

Here, the facts alleged in the Statement of Charges, if true, are sufficient to justify Respondent's immediate suspension under Education Code 44939 for immoral conduct. During the choir trip to Nashville, Respondent was entrusted with the well-being and safety of students. Respondent's responsibilities towards the students was heightened because the students were away from their parents and far from home. During the trip, Respondent was hostile and berated the students, his work colleagues, and the parent chaperones, making them feel uncomfortable to be in his presence and raising such a level of concern that the Principal had to travel to Nashville. The totality of Respondent's conduct during the choir trip demonstrated moral indifference to the opinions of respectable members of the school community, and an inconsiderate attitude toward good order and his students' welfare.

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Based on the foregoing, the ALJ finds the well-pleaded facts contained in the Statement of Charges, if true, are sufficient to establish a basis for Respondent's immediate suspension under Education Code section 44949 for immoral conduct. Therefore, Respondent's motion for immediate reversal of suspension is denied.

IT IS SO ORDERED.

DATE: 09/23/2025

  
Erlinda Shrenger (Sep 23, 2025 15:29:51 PDT)

ERLINDA SHRENGER

Administrative Law Judge

Office of Administrative Hearings